

STATE OF NEW YORK

9363--A

2025-2026 Regular Sessions

IN ASSEMBLY

December 19, 2025

Introduced by M. of A. BERGER -- read once and referred to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to electric scooter programs; and to amend the state finance law, in relation to establishing the street and sidewalk infrastructure fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 1290 to read as follows:

3 § 1290. Electric scooter programs. 1. As used in this section, the
4 following terms shall have the following meanings:

5 (a) "Electric scooter program" shall mean any service operated by a
6 city agency, including but not limited to the department of transporta-
7 tion, or a private organization or entity authorized through contract
8 with a city agency, offering electric scooters for short-term public
9 rental.

10 (b) "Operator" shall mean any person, firm, corporation, partnership,
11 association, or other entity engaged in the business of managing or
12 providing an electric scooter program.

13 2. Each operator shall remit to the department a fee to be determined
14 by the commissioner, which shall be deposited into the street and side-
15 walk infrastructure fund established pursuant to section ninety-nine-uu
16 of the state finance law.

17 3. (a) All electric scooters in an electric scooter program shall be
18 registered annually with the department.

19 (b) As part of such registration required pursuant to paragraph (a) of
20 this subdivision, each electric scooter shall be subject to an annual

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 safety inspection, including evaluation of mechanical integrity and
2 lithium-ion battery safety standards.

3 4. Every operator shall maintain a twenty-four hour, seven day per
4 week response system to allow reporting of and prompt removal of improp-
5 erly parked electric scooters.

6 5. (a) Any operator who fails to comply with the provisions of this
7 section shall be subject to civil fines, and/or suspension or revocation
8 of their registration for an electric scooter program, as determined by
9 the commissioner.

10 (b) Any electric scooter reported to be obstructing an accessible
11 route in violation of the federal Americans with Disabilities Act of
12 1990, as amended (Public Law 101-336), to an operator pursuant to subdi-
13 vision four of this section which is not promptly removed shall be
14 subject to enhanced penalties.

15 6. The commissioner shall promulgate all rules and regulations neces-
16 sary for the implementation of this section.

17 § 2. The state finance law is amended by adding a new section 99-uu to
18 read as follows:

19 § 99-uu. Street and sidewalk infrastructure fund. 1. There is hereby
20 established in the joint custody of the comptroller, the commissioner of
21 taxation and finance, and the commissioner of transportation, a fund to
22 be known as the "street and sidewalk infrastructure fund".

23 2. Such fund shall consist of moneys required to be deposited thereto
24 pursuant to section twelve hundred ninety of the vehicle and traffic
25 law, and all other moneys appropriated, credited, or transferred thereto
26 from any other fund or source pursuant to law. Nothing contained in this
27 section shall prevent the state from receiving grants, gifts, or
28 bequests for the purposes of the fund as defined in this section and
29 depositing them into the fund according to law.

30 3. Moneys of the fund shall be made available to the department of
31 transportation for projects supporting the repair, maintenance, and
32 improvement of streets, sidewalks, and related pedestrian infrastruc-
33 ture.

34 4. The commissioner of transportation shall include in the depart-
35 ment's annual report made pursuant to section fourteen of the transpor-
36 tation law, a summary of how the moneys of the fund were utilized during
37 the preceding fiscal year, which shall include:

38 (a) the amount of money disbursed from the fund and the process used
39 for such disbursements;

40 (b) recipients of awards from the fund;

41 (c) the amount awarded to each; and

42 (d) the purposes for which such awards were granted.

43 § 3. This act shall take effect on the one hundred eightieth day after
44 it shall have become a law. Effective immediately, the addition, amend-
45 ment and/or repeal of any rule or regulation necessary for the implemen-
46 tation of this act on its effective date are authorized to be made and
47 completed on or before such effective date.